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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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RASHAUN TWINE,

Plaintiff,

COMPLAINT
05 CV 2516 (JGK)(RE)

-against-

THE CITY OF NEW YORK, PATRICK
SULLIVAN, "JOHN" ZEOLLA, the first
name being unknown, and "JOHN DOE" 1-
5, the names being fictitious and presently
unknown, individually and in their official
capacity as employees of the New York
City Police Department,

Defendants.

Jury Trial Demanded

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Rashaun Twine, by his attorneys, the Law Offices of Matthew Flamm, alleges
the following, upon information and belief, as his Complaint:

Nature of the Action

1. This civil rights action arises from the February 14, 2004 assault upon
and arrest of Rashaun Twine. Plaintiff seeks declaratory relief pursuant to 28 U.S.C.
§2201; and, under 42 U.S.C. §1983, compensatory and punitive damages for violation
of his civil rights.

Jurisdiction

2. This action arises under the United States Constitution and 42 U.S.C.
§1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and
§1343(3). Plaintiff asserts jurisdiction over the City of New York under 28 U.S.C.
§1367. Plaintiff requests that this Court exercise pendent jurisdiction over those state
law claims arising out of the same common nucleus of operative facts as do plaintiff's
federal claims.

Venue

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Southern District of New York as the events giving rise to the Complaint occurred in that judicial District.

Parties

4. Plaintiff Rashaun Twine is a citizen of the United States of America residing in the State and City of New York, County of Bronx.

5. Defendant CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendant Patrick Sullivan (Shield Number 24795) was at all times relevant a duly appointed and acting employee of the New York City Police Department assigned to the 48th Precinct in Bronx, New York.

7. Defendant "John" Zeolla (Shield Number 18191) was at all times relevant a duly appointed and acting employee of the New York City Police Department assigned to the 48th Precinct in Bronx, New York.

8. Defendants "John Doe" 1 through 5 were at all times relevant duly appointed and acting employees of the New York City Police Department; and upon information and belief were assigned to the 48th Precinct in Bronx, New York.

9. Defendants Sullivan, Zeolla and Doe 1-5 (collectively the "individual defendants") were at all times relevant acting under color of State law.

10. The individual defendants involved in the incident underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

11. On or about March 25, 2004, and within 90 days of the events giving rise to the instant case, the plaintiff filed a Notice of Claim upon defendant City of New York by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

12. The Notice of Claim was in writing, sworn to by the plaintiff, and contained the name and post office address of the plaintiff.

13. The Notice of Claim set out the nature of the claim, the time when, the place where, and manner by which the claim arose, and the damages and injuries claimed to have been sustained.

14. The City of New York has neglected and failed to adjust the claims within the statutory time period.

15. This action was commenced within one year and ninety days after the happening of the event upon which the claims are based.

Facts Underlying
Plaintiff's Claims for Relief

16. On February 14, 2004 at approximately 8 p.m. at or around the corner of Webster Avenue and East 175th Street, Bronx, New York, Rashaun Twine was assaulted, battered, and falsely arrested by the individual defendants.

17. At approximately 3 p.m., Mr. Twine attended a benefit dinner and concert at his church - a event to raise money for surgery for his nephew.

18. Mr. Twine left the church at approximately 7:30 p.m. and walked to the intersection of Webster Avenue and 183rd Street to get a livery cab to take him home. The plaintiff was picked up by a cab driven by Manuel Lora-Colon.

19. Mr. Twine gave Mr. Lora-Colon his home address, and the car proceeded toward the plaintiff's home. During this time, Mr. Twine was removing braids from his hair. He noticed Mr. Lora-Colon watching him in the rearview mirror.

20. For reasons unknown, the cab driver refused to take the plaintiff to his destination. At first the driver pretended that his cab could no longer operate properly and when Mr. Twine insisted that the driver call for another cab to pick him up, the driver became irrational and ordered Mr. Twine from the vehicle.

21. Concerned for his safety, the plaintiff refused to leave the cab in the neighborhood where the driver told him to get out. Mr. Twine remained calm and told the driver to either take him back to place he had been picked up in the first place or call his home base to have another cab take him home. The plaintiff was legally in the cab, had money to pay the fare, and was within his rights to insist he be taken to his destination.

22. The driver spoke in Spanish to his dispatcher. Shortly thereafter, the driver pulled into a gas station located at Webster Avenue and 175th Street, and ran from the car.

23. Numerous police officers and police vehicles were at the scene. Mr. Twine did not know what was going on but when he stepped from the vehicle he was confronted with a number of police officers, including one or more of the individual defendants, pointing their service revolvers at him saying words akin to "Freeze. Don't Move. Put your hands in the air."

24. Holding a hat in one hand the plaintiff raised both his hands and said "please be careful it's only a hat." The plaintiff did not want to get shot by mistake.

25. The individual defendants forcibly pushed the plaintiff up against the cab, frisked him, and asked "Where's the gun?"

26. The defendants took the plaintiff's identification. Mr. Twine asked what was going on. One of the individual defendants told the plaintiff the cab driver said Mr. Twine had threatened the driver with a gun.

27. The defendants searched Mr. Twine's person, the livery cab, and found no firearm or indeed evidence of any crime. The plaintiff was told he was free to go.

28. Mr. Twine turned to leave but made a uncomplimentary remark to the cab driver for falsely reporting he had a gun.

29. Immediately, one of the defendants grabbed the plaintiff by his jacket, struck him in the back, and threw him to the ground.

30. Thereupon, one or more of the individual defendants attacked the plaintiff punching and kicking him about his legs, back, face and head. One or more officers grabbed him by the hair and slammed his head on the pavement.

31. The plaintiff was assaulted by the individual defendants despite that he had not done anything wrong, there was no evidence he was committing any crime, and that he had complied with all orders made by the officers.

32. Due to his asthma, Mr. Twine was unable to breath and was gasping for air during the attack. He balled up to avoid the punches and kicks of the defendants. He screamed out that he would let them handcuff him if they stopped hitting him.

33. When they ceased their attack on Mr Twine, the defendants handcuffed the plaintiff behind his back.

34. Thereafter the plaintiff was transported to the 48th Precinct Stationhouse where he was falsely charged by the one or more of the individual defendants with Assault 2nd degree [P.L. §120.05(3)], Menacing 2nd degree [P.L. §120.14(1)], Resisting Arrest (P.L. §205.30), and Attempted Theft of Services [P.L. §110/165.13(3)].

35. On or about February 21, 2005 the charges were adjourned in contemplation of dismissal.

36. Mr. Twine was arrested and charged by the individual defendants even though plaintiff had committed no crimes and despite that defendants had no reasonable basis to believe that plaintiff had committed any crimes.

37. The plaintiff was taken to Central Booking, and eventually to Lincoln Hospital for medical treatment.

38. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the use of force, unlawful search and arrest, and attempted prosecution of Mr. Twine.

39. As a result of the foregoing, Mr. Twine suffered mental anguish, shock, fright, physical pain and suffering, and deprivation of his liberty and other constitutional rights, among other injuries. Mr. Twine suffered the debasement of being publicly assaulted and unlawfully arrested.

40. As a result of the foregoing, Mr. Twine suffered, among other physical injuries, lacerations and bruising to his forehead, face, hands, back, and legs.

41. At all times relevant, in stopping, searching, detaining, assaulting, arresting, and attempting to prosecute the plaintiff, the individual defendants acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE FORCE UNDER THE FOURTH
AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

42. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

43. By the actions described above, the individual defendants, or some of them, deprived plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to, his right to be free from excessive and unreasonable force.

44. As a consequence thereof Rashaun Twine has been injured.

SECOND CLAIM FOR RELIEF FOR ASSAULT

45. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

46. By the actions described above, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

47. As a consequence thereof Rashaun Twine has been injured.

THIRD CLAIM FOR RELIEF FOR BATTERY

48. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

49. By the actions described above, plaintiff was intentionally touched in a harmful and offensive manner.

50. As a consequence thereof Rashaun Twine has been injured.

FOURTH CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH
AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

51. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

52. By the actions described above, the individual defendants, or some of them, deprived Mr. Twine of rights secured by the Constitution and laws of the United States, including, but not limited to, his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to a warrant.

53. As a consequence thereof Rashaun Twine has been injured.

FIFTH CLAIM FOR RELIEF FOR FALSE IMPRISONMENT

54. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

55. By reason of the foregoing, plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

56. As a consequence thereof, Rashaun Twine has been injured.

SIXTH CLAIM FOR RELIEF FOR
VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
SIXTH AMENDMENT TO THE UNITED STATES CONSTITUTION

57. Plaintiff repeat the allegations of paragraphs 1-41 as if set forth in full herein.

58. By the actions described above, and by filing or allowing to be filed false allegations with the Criminal Court of the City of New York, County of Kings, the individual defendants deprived plaintiff of rights secured by the United States Constitution, including, but not limited to, his right to a fair trial.

59. As a consequence thereof Rashaun Twine has been injured.

**SEVENTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

60. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

61. The individual defendants, and each of them, failed to intervene to prevent, end, or truthfully report the unlawful use of force, arrest and false statements made by defendants in furtherance of the prosecution of Mr. Twine, despite having a reasonable opportunity to do so.

62. As a consequence thereof Rashaun Twine has been injured.

EIGHTH CLAIM FOR RELIEF FOR NEGLIGENCE

63. Plaintiff repeats the allegations of paragraphs 1-41 as though fully stated herein.

64. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to assign, train, supervise or discipline its law enforcement personnel, including assigning, training, supervising or disciplining individual Police personnel who unlawfully detain, search, assault, arrest, or who make false allegations in the course of lodging criminal charges.

65. The defendant City of New York's failure properly to assign, train, supervise or discipline its Police Officers, including the Police Officers involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional arrests, uses of force, and false allegations and allowed the defendants to believe that they could with impunity detain, search, assault, arrest, and attempt to prosecute Mr. Twine.

66. By reason of the foregoing, the defendant City of New York through its agents, servants, and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

67. As a consequence thereof Rashaun Twine has been injured.

Request for Relief

WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. A declaration that plaintiff's right to be free unreasonable force under the United States Constitution was violated;
2. A declaration that plaintiff's right to be free from unreasonable searches and seizures under the United States Constitution was violated;
3. A declaration that plaintiff's right to a fair trial under the Sixth Amendment to the United States Constitution was violated;

- (B) Compensatory damages in an amount to be fixed at trial;
- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;
- (D) An award to plaintiff of the costs and disbursements herein;
- (E) An award of attorney's fees under 42 U.S.C. §1988;
- (F) Such other and further relief as this Court may deem just and proper.

Dated: March 3, 2005
Brooklyn, New York

Law Office of Matthew Flamm
Attorneys for Plaintiff

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